

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Squad #04	CCRB Case #: 201503810	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 05/08/2015 11:00 PM	Location of Incident: Franklin Avenue "C train" platform, and en route to the Transit Bureau District 30 stationhouse	18 Mo. SOL 11/8/2016	Precinct: 79
Date/Time CV Reported Sat, 05/09/2015 3:45 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/13/2015 11:13 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Patrick Groves	30944	953931	TB DT30

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Nicholas Zummo	04089	954442	TB DT30
2. POM Eustace Burke	01291	923594	TB DT30
3. POF Niane Rivera	26898	945436	TB DT30

Officer(s)	Allegation	Investigator Recommendation
A . POM Patrick Groves	Force: On the Franklin Avenue "C train" platform, in Brooklyn, PO Patrick Groves used physical force against § 87(2)(b) [REDACTED]	A . Exonerated
B . POM Patrick Groves	Discourtesy: En route to the Transit Bureau District 30 stationhouse, PO Patrick Groves spoke rudely to § 87(2)(b) [REDACTED]	B . Unsubstantiated

Case Summary

On May 9, 2015, at 3:45 a.m., § 87(2)(b) filed this complaint in-person at the 84th Precinct, on behalf of § 87(2)(b). § 87(2)(b) is unrelated to § 87(2)(b) and witnessed the incident. On May 13, 2015 the case was referred to the Civilian Complaint Review Board (CCRB) under IAB original log #15-12305.

On May 8, 2015, § 87(2)(b) exited the Downtown/ Brooklyn Bound “C” train at the Franklin Street stop, in Brooklyn. § 87(2)(b) walked along the platform with his phone playing music at full volume. As § 87(2)(b) walked past two uniformed officers, determined by investigation to be PO Patrick Groves and PO Nicholas Zummo of Transit District 30, PO Groves told § 87(2)(b) to turn off his phone and that it was a violation to play music on the subway. According to § 87(2)(b) he then turned off the music and continued to walk without hearing PO Groves’ request for his identification. PO Zummo blocked his path and PO Groves placed his hand on § 87(2)(b) shoulder while asking for § 87(2)(b) identification. PO Groves informed § 87(2)(b) that he was going to be placed under arrest. § 87(2)(b) attempted to walk in-between and past PO Groves and PO Zummo.

PO Groves then allegedly grabbed § 87(2)(b) from behind, lifted him off of the ground and slammed him to the floor (Allegation A). PO Zummo and PO Groves then placed him in handcuffs by pulling § 87(2)(b) hands behind his back.

§ 87(2)(b) was then transported to the Transit District 30 stationhouse. While en route to the stationhouse, § 87(2)(b) was crying and PO Groves allegedly stated, “Stop fucking crying, if you want to act grown, act grown” (Allegation B).

Mediation, Civil and Criminal Histories

- On May 18, 2015, during his sworn statement, § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- A notice of claim inquiry was sent to the New York City comptroller’s office on August 10, 2015. A response to this inquiry will be included in the case file upon its receipt.

Civilian and Officer CCRB Histories

- This is the first complaint filed by or involving § 87(2)(b) or § 87(2)(b)
- PO Groves has been a member of the service for 2 years and has one other complaint filed against him, with one allegation that was administratively closed.

Potential Issues

- While video footage for the date and time of this incident was obtained by MTA, the interaction between § 87(2)(b) and the officers occurred off-screen and the cameras did not capture any of the initial interaction between § 87(2)(b) and PO Groves, including any force used against § 87(2)(b). The cameras did capture § 87(2)(b) being escorted out of the subway station by PO Groves, along with eleven other officers and § 87(2)(b) (Board Review 8)

Findings and Recommendations

Allegation A -Force: On the Franklin Street “C” train platform, in Brooklyn, PO Patrick Groves used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) was playing music on his cellphone that was audible to other passengers while on the station platform. It is undisputed that PO Groves stopped § 87(2)(b) for that reason, and it is undisputed that § 87(2)(b) attempted to walk past PO Groves and PO Zummo after he was informed that he was going to be arrested. It is undisputed that this resulted in PO Groves forcing § 87(2)(b) to the ground, handcuffing him. § 87(2)(g)

§ 87(2)(b) refused to sign a medical release form and so the investigation could not obtain his medical records. However, § 87(2)(b) arrest photograph depicts a small abrasion on the right side of his forehead (Board Review 10).

According to § 87(2)(b) (Board Review 3), after he told PO Groves that he did not have identification, PO Groves stated that he was under arrest. § 87(2)(b) stated that he then attempted to walk past PO Groves and PO Zummo, and PO Groves then grabbed him around his torso from behind, lifted him off of the ground and slammed him to the ground.

According to § 87(2)(b) (Board Review 2), as § 87(2)(b) walked past PO Groves, PO Groves grabbed § 87(2)(b) around his upper-body and used his body weight to force § 87(2)(b) to the ground. PO Groves and PO Zummo then collectively placed § 87(2)(b) in handcuffs. § 87(2)(b) stated that she saw a small scrape on § 87(2)(b) forehead.

According to PO Groves (Board Review 4), when he questioned § 87(2)(b) about getting his ID, § 87(2)(b) was starting to tense his body, and his tone became more aggressive. PO Groves responded by telling § 87(2)(b) “Sir, give me your ID or you’re gonna get cuffed.” § 87(2)(b) again asked “For what?” PO Groves and PO Zummo then attempted to put § 87(2)(b) in handcuffs. § 87(2)(b) immediately resisted by not giving his arms. PO Groves decided to handcuff him because his demeanor, tone of voice, and posture, looked like he was not going to cooperate. § 87(2)(b) resisted arrest by pulling his arms together in front of his body, to prevent PO Groves and PO Zummo from placing them behind his back. As they struggled, PO Groves sensed they were approaching the platform edge. As a result, PO Groves stated that he put § 87(2)(b) in a rear body lock and wrestled him to the ground to prevent any of them from going over the edge and onto the tracks. PO Groves put his hands around § 87(2)(b) waist, locked his hands, and rocked back to the left, causing them both to go down to the ground.

While PO Zummo (Board Review 5) corroborated that § 87(2)(b) was verbally resistant to being placed under arrest, he stated that he did not personally witness how § 87(2)(b) was brought to the ground.

§ 87(2)(g)

§ 87(2)(b) denied seeing § 87(2)(b) being lifted off of his feet.

Metropolitan Transit Authority Rules of Conduct § 1050.7, states that no person on or in any facility or conveyance shall create any sound through the use of any sound production device, except as specifically authorized by 1050.6(c) of these rules. Use of radios and other devices listened to solely by head-phones or earphones and inaudible to others is permitted. Metropolitan Transit Authority Rules of Conduct § 1050.12 stated that any New York City Police Officer shall be empowered to issue a notice of violation for violation of the transit rules. (Board Review 9)

An officer is permitted to perform a custodial arrest in lieu of a summons when the subject's identity is in question. People v. Brito, 4 Misc.3d 1004(a) (Crim. Ct. New York Cty. 2004)

NYPD Patrol Guide Procedure 203-11 requires that officers use the minimum necessary force when effectuating an arrest (Board Review 6).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as *exonerated*.

Allegation B- Discourtesy- En Route to the Transit District 30 stationhouse, in Brooklyn, PO Patrick Groves spoke rudely to § 87(2)(b)

It is undisputed that PO Groves rode in the backseat with § 87(2)(b) en route to the Transit District 30 stationhouse. § 87(2)(b) was crying while in the backseat. § 87(2)(b) alleged that PO Groves stated to him, "Stop fucking crying. If you want to act grown, act grown." PO Groves denied making this statement, and stated that he did not recall that there was any statements made by him en route to the stationhouse. The only other individuals in the vehicle with PO Groves and § 87(2)(b) were PO Eustace Burke and PO Niane Rivera. PO Burke (Board Review 7) recalled § 87(2)(b) continually asking why he was being arrested and PO Groves explaining the basis of the arrest to § 87(2)(b) but did not hear PO Groves use any profanity or make the alleged statement. PO Rivera (Board Review 8) did not recall any specific interaction between § 87(2)(b) and PO Groves, and only recalls that § 87(2)(b) was crying. PO Rivera denied hearing PO Groves ever raise his voice or use any profanity towards § 87(2)(b) throughout the transport to the stationhouse.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as *unsubstantiated*.

Pod:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
 Title/Signature Print Date